Constitutional Law I **Professor Baude**
LAWS 40101
Final Exam, Spring 2023

The rules: This is an eight-hour take-home examination. It is open book. Feel free to use any print or electronic materials you like including the internet, except for an artificial intelligence program or large language model. But until the exam is over, you may not discuss the exam with any person—in this class or otherwise.

The exam has three questions, worth a total of 100 points.

Each question has a word limit. I won't read additional words. Some of the questions have multiple parts, worth different amounts of points. You can use your judgment as to how to allocate words within each part of a single question. *Remember to watch your word count.*

Advice: Though the exam is open-book, don't get too distracted by materials outside those in the book or the course materials. Some of the exam questions borrow from real-world examples, but they are hypotheticals and I've changed some of the details.

My advice is to sketch an outline to each of the questions before you actually begin to write. If you just dive in, you may get lost halfway through and you may run out of space. I also recommend you save a significant amount of time at the end for proofreading and checking for mistakes.

Grading: Grades will be based on your understanding, analysis, and clarity of exposition (so please proofread). Final grades will be calculated in compliance with the law school's grading policies.

If there are additional facts you need to know, please say what they are and how they would affect your analysis. And of course when explaining your answers be sure to explain your reasoning.

Question One. (45 points, 1350 words)

Americans owe more than 1.5 trillion dollars in student loan debt to the Department of Education. In recent years, President Joseph Biden announced a plan to forgive – i.e., to permanently cancel without demanding repayment – approximately a third of this debt (500 billion dollars) by invoking the authority of a federal statute called the HEROES Act, which arguably gives the President power to forgive debt in order to ease the broad consequences of the COVID-19 pandemic. (This plan is the subject of two pending Supreme Court cases, *Nebraska v. Biden*, and *Department of Education v. Brown*, which you can ignore for purposes of this question.)

It is now 2024, an election year, and for both political reasons and policy reasons President Biden would like to forgive *all* of the student loan debt. But the government has declared an official end to the federal emergency response to the COVID-19 pandemic so it can no longer try to use the HEROES Act. President Biden's lawyers and advisors cannot find any other statutory authority to forgive those student loans.

So the President instead decides to invoke Article II of the Constitution. Citing "the executive power" contained in Article II, section 1 of the Constitution, as well as Article II, section 3's injunction that "he shall take Care that the Laws be faithfully executed," the President decides that he is no longer going to enforce any student debts owed to the United States. He argues that this is a lawful, constitutional, exercise of his enforcement discretion as chief executive.

A. (15 points) Imagine that somebody has standing to challenge this action in a federal district court that is bound by all of the judicial precedents we have studied in class. How do you think the court would rule on the lawfulness of this action, and why?

B. (15 points) Imagine instead that nobody has standing to challenge this action in court. So the House Committee on the Judiciary is considering proposing articles of impeachment. What could and should happen? Is this something for which the House could impeach the President, and is it something for which the Senate could convict? Should they?

C. (15 points) One more time, imagine a different path. Instead of a lawsuit or an impeachment proceeding, imagine that President Biden loses re-election in 2024, to Republican candidate Tim Scott, currently a Senator from South Carolina. After assuming the presidency, President Tim Scott announces that Biden's actions were unlawful, null, and void, and that he is going to begin enforcing federal student loans against all borrowers, along with any interest and penalties for those who did not pay during Biden's presidency. Can he do that? What would happen?

Question Two. (30 points, 900 words)

In the wake of *NYSRPA v. Bruen*, Congress proposes a new federal gun control measure, called The Gun Free Sensitive Places Tax. The bill imposes a "tax" of $25,000 on any person who knowingly possesses a gun within 500 feet of a post office, a state or federal courthouse, a school, or a train station. The tax is enforced and collected by several different agencies – the United States Postal Service (for post offices), the Department of Justice (for courthouses), the Department of Education (for schools), or the Department of Transportation (for train stations).

(The Court's Second Amendment precedents say that there is no right to carry firearms in "sensitive places." Assume that these locations count as "sensitive places" so there are no Second Amendment/Fourteenth Amendment problems under *Bruen*.)

A group of people challenge the tax in a series of lawsuits – one challenging each of these categories. The cases are consolidated in front of a federal district judge, who has to sort out which parts of this measure are constitutional. What should she say?

Question Three. (25 points, 750 words)

A. (20 points) Write one amendment to the Constitution that you would recommend to improve it. Please give the exact text of the Amendment you would want, and explain why you recommend it and what you think it would accomplish.

B. (5 points) What are the most significant ambiguities in your proposed amendment, and how might later interpreters disagree about them?

End of Exam.

REMINDER: Did you check your word count for each question?